

25STLC07703 25STLC07703

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Case Number: 25STLC07703 Hearing Date: September 10, 2026 Dept: 25

HEARING DATE: Thurs., September 10, 2026 JUDGE /DEPT: Eisenman/25

CASE NAME: Atlas

Audio Video & Communications, Inc. v. Adamczak, et al.

COMP. FILED: 10-08-25

CASE NUMBER: 25STLC07703

NOTICE: OK

PROCEEDINGS: DEMURRER

OF DEFENDANTS TO SECOND AMENDED COMPLAINT

MOVING PARTY: Defendants

Robert W. Harrison and Lissa Jody Harrison, as Trustees of the Robert W. Harrison and Lissa Jody Harrison Family Trust, and Conrad S. Adamczak

RESP. PARTY: Plaintiff Atlas Audio Video & Communications, Inc.

DEMURRER TO SECOND AMENDED COMPLAINT

(CCP §§ 430.10, et seq.)

TENTATIVE RULING:

The Court OVERRULES Robert W. Harrison, Lissa Jody

Harrison, and Conrad S. Adamczak's demurrer to the second amended complaint.

Atlas is to give notice.

SERVICE:

☒ Proof

of Service Timely Filed (CRC, rule 3.1300) OK

☒ Correct

Address (CCP §§ 1013, 1013a) OK

☒ 16/21

Court Days Lapsed (CCP §§ 12c, 1005(b)) OK

OPPOSITION: Filed

on August 25, 2026 ☐ Late ☐

☐ None

REPLY: Filed

on August 27, 2026 ☐

Late ☐ None

ANALYSIS:

This is the second

go at demurrer proceedings in this action.

The litigation's basic contours are easily stated: Atlas Audio Video & Communications, Inc.,

installed, well, audio, video, and communications equipment in a house on Azure

Place owned by the Robert W. Harrison and Lissa Jody Harrison Family Trust and

occupied by Michelle and Conrad Adamczak.

Atlas alleges it didn't get paid everything it was owed for that

equipment and its labor, and is suing on basically the theories that one would

expect under the circumstances. The

prolonged pleading-stage litigation has been over who the appropriate targets

of those claims ought to be.

Michelle's

identity as an appropriate defendant hasn't really been disputed. She signed the contract with Atlas and her name

is on all its invoices. Once the Family

Trust became known to Atlas as the owner of the Azure Place house, identifying it as a defendant against which to enforce a mechanics lien is not (or is no longer) the subject of dispute. One could also say that the Family Trust and Conrad, along with Michelle, received and retained the benefit of Atlas's work at Atlas's expense, subjecting them to liability on a quasi-contract theory. The parties are now basically fighting only over whether Conrad and the Family Trust can also be liable for a straightforward breach of contract (for which Michelle can already be held liable) and on common counts that the Court will once again call breach-of-contract lite (again, for which Michelle can already be held liable). Candidly, the Court is puzzled by the continuing litigation of this question—does Atlas believe, for example, that Michelle would thumb her nose at a judgment and the consequences that flow from one?—but it will now resolve the issue.

The Court

OVERRULES the demurrer to the second amended complaint.

First, the breach

of contract. Atlas contends that Conrad

and the Family Trust are liable for breaching the contract that Michelle entered, because Michelle acted as their agent when she did so and they subsequently ratified the contract. (See

3 Witkin, Summary of Cal. Law (May 2026 Update) Agency and Employment, § 168 [when an agent doesn't disclose her principal, "i.e., if an agent acting for (her) principal makes a contract in . . . her own name either orally or in writing, the result will ordinarily be that either the principal or agent may be held liable on it by the third party"]; id., § 170 [a third party may sue both a principal and her agent, but must eventually elect which to have judgment against].) The question is

whether Atlas has pleaded the ultimate facts establishing a principal–agent relationship between Michelle and Conrad and Michelle and the Family Trust. This is a fairly straightforward analysis: "[A]n allegation of agency as such is a statement of ultimate fact.

Consequently further allegations explaining how this fact of agency originated become unnecessary." (Skopp

v. Weaver (1976) 16 Cal.3d 432, 439; e.g., City of Industry v. City of Fillmore (2011) 198 Cal.App.4th 191, 212.)

The demurring defendants

argue that Skopp doesn't mean precisely what it says, or at least that it also means that if a pleading contains specific allegations that undermine a general allegation of agency, then the Court should disregard the general allegation of agency. Fair enough, but the demurring defendants haven't identified anything in the second amended complaint negates the general allegation that Michelle was acting as an agent for Conrad and the Family Trust.

Nor does it matter, ultimately, that the alleged agency agreement authorizing Michelle to contract on Conrad's or the Family Trust's behalf hasn't been reduced to writing. To be sure, the equal dignities rule means that if a contract must be in writing, then an agreement authorizing an agent to enter that contract on a principal's behalf must also be in writing. (Civ. Code, §§ 2309, 2310; Estate of Stephens (2002) 28 Cal.4th 665, 673.) And, the demurring defendants observe, Business and Professions Code section 7159 says that a contract "for the sale, installation, or furnishing of home improvement good or services" must be in writing if it's for over \$500. But the word "must" is doing different work in the two preceding sentences. (Cf. County of Los Angeles v. Superior Court (2012) 209 Cal.App.4th 543, 549–550 [the word "shall" doesn't always mandate the conduct to which it is applied].) If a contractor fails to reduce a home-improvement contract to a signed writing, the contract isn't void. (E.g., Hinerfeld-Ward, Inc. v. Lipian (2010) 188 Cal.App.4th 86, 91–94; compare Civ. Code, § 1624 ["The following contracts are invalid, unless they . . . are in writing."] with Bus. & Prof. Code, § 7159 [silent on the validity of contracts made in violation of the statutory requirements].)

So it isn't true, in the relevant sense, that a home-improvement contract "must" be in writing. It therefore isn't true that an agreement authorizing an agent to enter a home-improvement contract on a principal's behalf must likewise be in writing.

The net of this is that Atlas has alleged, at least based on an agency theory, that Michelle bound her principals to the contract at issue in this case.

That brings the Court to the second cause of action, on common counts, around which there is

also some dispute. It isn't much of one, though. The same agency allegations that are sufficient to allege a breach of contract against Conrad and the Family Trust are sufficient to allege this breach-of-contract lite claim against them. The bigger dispute here is whether Atlas exceeded the scope of its leave to amend by expanding the nature of the common counts. The first amended complaint sought recovery for goods sold and delivered. The second amended complaint seeks recovery for that, but also for an account-stated and on an open book account. The Court's previous order granted Atlas leave to amend only to address the issue of the parties properly sued on this cause of action.

Two things are true here. One, Atlas played fast and loose with the scope of the leave it was granted. Two, it makes basically no difference that the Court can discern.

As the Court observed at the beginning, the basic contours of this action are straightforward. With the overruling of the demurrer, the parties should get on with litigating it.

Atlas is to give notice.